

STATE OF NEW YORK

3954--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. RAGA, SEAWRIGHT, SIMONE, KASSAY, McDONALD, REYES, SHRESTHA, MITAYNES, GONZALEZ-ROJAS, BURROUGHS, GALLAGHER, SIMON, WRIGHT, ZINERMAN, VALDEZ, PAULIN, TAYLOR, WEPRIN, ROSENTHAL -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Election Law in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to enacting the "student voter empowerment act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "student voter empowerment act".

3 § 2. Subdivision 18 of section 5-211 of the election law, as amended
4 by chapter 481 of the laws of 2023, is amended and two new subdivisions
5 19 and 20 are added to read as follows:

6 18. (a) [~~i~~] On or before January first, two thousand twenty, all
7 institutions of the state university of New York and the city university
8 of New York shall create and make available to all students a webpage
9 for voter education on each such institution's website, containing a
10 link to an application for voter registration, a link to an application
11 for an early mail ballot, updated information about the location and
12 hours of the polling place designated for students registered to vote on
13 the contiguous property of the institution, if such polling place exists
14 pursuant to subdivision five-a of section 4-104 of this chapter or as
15 designated by the local board of election, key dates for voting regis-
16 tration, voting times, and absentee voting detailed in the state board
17 of elections political calendar, information about the voting rights of
18 students, contact information for the county board of elections, and the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD03341-06-6

1 name and contact information for the [~~administrator responsible for~~
2 ~~voter registration assistance~~] student voting coordinator on each
3 campus.

4 [~~(ii)~~] (b) Each such institution shall, at the beginning of the school
5 year, and again in January of a year in which the president of the
6 United States is to be elected, provide an application for voter regis-
7 tration and an application for an early mail ballot to each student in
8 each such institution. Each institution shall be considered in compli-
9 ance with the requirements of this [~~subparagraph~~] paragraph for each
10 student to whom the institution electronically transmits a message
11 containing the link to the webpage for voter education, the link to an
12 application for voter registration and the link to an application for an
13 early mail ballot, if such information is in an electronic message
14 devoted exclusively to voter registration.

15 [~~(iii)~~] (c) Each such institution shall provide the same degree of
16 assistance as required of participating agencies.

17 [~~(b) The state university of New York and the city university of New~~
18 ~~York, on behalf of each institution within its system, shall on or~~
19 ~~before June first, two thousand twenty, and each subsequent year, submit~~
20 ~~a report disaggregated according to each institution to the state board~~
21 ~~of elections that includes:~~

22 ~~(i) the efforts of the institution to register voters in the preceding~~
23 ~~calendar year;~~

24 ~~(ii) a date-stamped screen shot of the webpage for voter education~~
25 ~~that contains the required information under paragraph (a) of this~~
26 ~~subdivision;~~

27 ~~(iii) the number of students who were registered for course work in~~
28 ~~the preceding twelve months at such institution and the number of clicks~~
29 ~~on the links to online voter registration and early mail ballot applica-~~
30 ~~tions; and~~

31 ~~(iv) any other efforts or recommendations the institution plans to~~
32 ~~implement to improve access to voter registration and early mail ballot~~
33 ~~voting for students at the institution.~~

34 ~~(c) The state board of elections shall make the reports provided~~
35 ~~pursuant to paragraph (b) of this subdivision publicly available on its~~
36 ~~website.]~~

37 19. Each public higher education system on behalf of each institution
38 within its system, shall on or before June first, two thousand twenty-
39 seven, and each subsequent year, submit a report disaggregated according
40 to each institution to the state board of elections that includes:

41 (i) the efforts of the institution to register voters in the preceding
42 calendar year;

43 (ii) a date-stamped screen shot of the webpage for voter education
44 that contains the required information under paragraph (a) of this
45 subdivision;

46 (iii) the number of students who were registered for course work in
47 the preceding twelve months at such institution and the number of clicks
48 on the links to online voter registration and early mail ballot applica-
49 tions; and

50 (iv) any other efforts or recommendations the institution plans to
51 implement to improve access to voter registration and early mail ballot
52 voting for students at the institution.

53 (d) The state board of elections shall make the reports provided
54 pursuant to paragraph (c) of this subdivision publicly available on its
55 website.

1 20. (a) Each public higher education institution within the state of
2 New York shall designate a staff member to act as a student voting coor-
3 ordinator. The student voting coordinator shall develop and implement a
4 student voting action plan to increase student voter registration and
5 voting and democratic participation among students. Such student voting
6 action plan shall cover the two year period immediately preceding each
7 statewide general election, provided however that the action plan
8 following the effective date of the chapter of the laws of two thousand
9 twenty-six that amended this subdivision shall cover the period after
10 such effective date, and shall be updated after each statewide general
11 election.

12 (b) The student voting action plan shall include:

13 (i) A minimum of three election outreach events to increase democratic
14 participation and student voting during an academic year, including at
15 least one event during the forty-five days preceding a general or prima-
16 ry election. At least one event shall be held in-person. Such events
17 shall be open for all students to attend, and may be sponsored by
18 student organizations, provided they maintain the requirements as speci-
19 fied in paragraph (c) of this subdivision.

20 (ii) Provision of informational materials on voting and voter regis-
21 tration, including but not limited to application and online application
22 for voter registration as required in subdivision eighteen of this
23 section, in central locations and high-traffic areas on campus, includ-
24 ing during orientation events for new students and during course regis-
25 tration processes, and in electronic messages, social media platforms,
26 and text messages to cellular phones, to the extent the institution uses
27 such methods to provide information to students.

28 (iii) In consultation with local boards of elections, provision of
29 pre-filled voter registration applications with relevant residential
30 addresses on the contiguous property of the college or university.

31 (iv) Dissemination of information about voter registration and voting
32 opportunities to all students on the website created pursuant to subdi-
33 vision eighteen of this section, including:

34 (A) the dates for early voting and election day voting;

35 (B) the last day for voter registration, enrollment, and change of
36 enrollment;

37 (C) the process to search for a voter's early voting and election day
38 assigned poll sites and voter registration status;

39 (D) the location and hours of the polling place designated for
40 students registered to vote at any address on the contiguous property of
41 the institution, pursuant to subdivision five-a of section 4-104 of this
42 chapter, if such polling place is designated;

43 (E) the process and deadlines for applying for and returning absentee
44 ballots, early mail ballots, and for curing defects in absentee ballots;

45 (F) the option to use students' campus residence address to register
46 to vote;

47 (G) the protections for the right to vote pursuant to title two of
48 article seventeen of this chapter, the John R. Lewis voting rights act
49 of New York, and the rights of voters with disabilities; and

50 (H) the assistance for language-minority groups as provided by section
51 17-208 of this chapter.

52 (v) Support of student organizations engaged in activities to increase
53 voter registration and voting by students, including but not limited to
54 professional assistance, dissemination of information of activities, or
55 financial support.

1 (vi) A policy allowing a student to be excused from class or absent
2 from a job with the institution for a reasonable period for the purpose
3 of voting on election day, if the student does not have three hours of
4 continuous time out of class or off from a job with the institution
5 during the time the polls are open on election day.

6 (vii) Any other activities to improve access to voting and voter
7 registration for students.

8 (c) The work of the student voting coordinator and the activities in
9 the student voting action plan, including but not limited to outreach
10 events, informational materials, and communications, shall not be
11 conducted for the purpose of favoring or disfavoring particular candi-
12 dates or political parties.

13 (d) The chancellor or president of each public higher education insti-
14 tution in the state of New York shall promulgate rules for the manner of
15 developing the student voting action plan which shall include consulta-
16 tion with staff, faculty members, and student organizations with experi-
17 ence in civic engagement.

18 (e) On or before June first of each year, each public higher education
19 institution shall submit a report to the state board of elections, in a
20 form and manner prescribed by the board, detailing its efforts to
21 promote student voter registration and participation. The state board of
22 elections, in consultation with the state university of New York and the
23 city university of New York, shall establish uniform standards for such
24 reports. Each report shall be disaggregated by institution and shall
25 include, but not be limited to:

26 (i) the efforts of the institution to promote voter access in the
27 preceding calendar year, including the student voting action plan devel-
28 oped and implemented pursuant to paragraph (b) of this subdivision;

29 (ii) a date-stamped screenshot of the webpage for voter education that
30 contains the information required pursuant to subdivision eighteen or
31 nineteen of this section, as applicable;

32 (iii) non-personally identifiable data on student registration and
33 participation, including the number of students registered for course-
34 work in the preceding twelve months and, to the extent practicable, the
35 number of clicks on links to online voter registration and early mail
36 ballot applications provided by the institution; and

37 (iv) any other efforts or recommendations the institution plans to
38 implement to improve access to voter registration and voting for its
39 students.

40 (f) The state board of elections shall make all reports provided
41 pursuant to paragraph (e) of this subdivision publicly available on its
42 website. The board shall also, not later than September first of each
43 year, prepare and publish on its website a summary report analyzing
44 statewide trends in student voter registration and participation based
45 on the data provided.

46 (g) To supplement the data collected and analysis performed by the
47 board, the state board of elections may coordinate with a qualified
48 academic or not-for-profit research institution, including but not
49 limited to those located outside the state, which conducts national
50 studies on student civic engagement and voter participation, to facili-
51 tate the collection, analysis, and public reporting of non-personally
52 identifiable data regarding student voting in the state.

53 § 3. Paragraph (a) of subdivision 1 of section 17-208 of the election
54 law, as added by chapter 226 of the laws of 2022, is amended to read as
55 follows:

1 (a) more than two percent, but in no instance fewer than three hundred
2 individuals, of the citizens of voting age of a political subdivision or
3 residents of a college or university are members of a single language-
4 minority group and are limited English proficient.

5 § 4. This act shall take effect one year after it shall have become a
6 law. Effective immediately, the addition, amendment and/or repeal of any
7 rules and regulations necessary to implement the provisions of this act
8 on its effective date are authorized to be made and completed on or
9 before such date.